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Exempt from Filing Fees: Gov. Code, § 6103

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI,

Petitioner,

v.

CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity as Captain and Commander of the California Highway Patrol Dublin Area; GARY PAUL, in his official capacity as Lieutenant of the of the California Highway Patrol Dublin Area; ERIC DUTRA, in his official capacity as Sergeant of the California Highway Patrol Dublin Area; and DOES 1 through 10, inclusive,

Respondents.

Case No. 26CV191136

RESPONDENT ERIC DUTRA'S NOTICE OF JOINDER; NOTICE OF DEMURRER AND DEMURRER TO PETITION FOR WRIT OF MANDATE; NOTICE OF HEARING

Date: October 23, 2026
Time: 9:00 a.m.
Dept: 25
Judge: The Honorable Jenna M. Whitman
Trial Date: None Set
Action Filed: May 29, 2026

Reservation Number: 238548651533

NOTICE OF JOINDER TO CALIFORNIA HIGHWAY PATROL'S DEMURRER

TO ALL PARTIES AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that Respondent Eric Dutra ("Mr. Dutra") hereby joins in Respondent California Highway Patrol's ("CHP") Demurrer to the Petition for Writ of Mandate ("CHP's Demurrer") as to all causes of action in the petition on the ground that the petition does not state facts sufficient to constitute a cause of action. (*See* Code Civ. Proc. § 430.10, subd. (e).) In support of his Joinder, Mr. Dutra (a) adopts the points and authorities on these arguments filed in support of CHP's Demurrer, incorporating them herein by this reference; and (b) submits additional points and authorities in support of his Demurrer to the Petition for Writ of Mandate.

Dated: July 30, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
MARK R. BECKINGTON
Supervising Deputy Attorney General

/s/ *Vanessa Ing*
VANESSA ING
Deputy Attorney General
Attorneys for Respondent
Eric Dutra

NOTICE OF HEARING ON DEMURRER TO PETITION FOR WRIT OF MANDATE

TO ALL PARTIES AND THEIR COUNSEL OF RECORD:

PLEASE TAKE NOTICE that on October 23, 2026 at 9:00 a.m., in Department 25 of this Court, located at 1221 Oak Street, Oakland, CA 94612, the demurrer of Respondent Eric Dutra to the Petition for Writ of Mandate of Petitioner Brendan Ngehsi Newanforbi, served and filed with this notice, will be heard.

The demurrer is based on this notice, the notice of joinder, the memorandum in support, the accompanying declaration, the files and records in this action, and any further evidence and argument that the Court may receive at or before the hearing.

Dated: July 30, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
MARK R. BECKINGTON
Supervising Deputy Attorney General

/s/ *Vanessa Ing*
VANESSA ING
Deputy Attorney General
Attorneys for Respondent
Eric Dutra

NOTICE OF DEMURRER TO PETITION FOR WRIT OF MANDATE

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

Respondent Eric Dutra demurs generally to the Petition for Writ of Mandate on the ground that the petition does not state facts sufficient to constitute a cause of action. (*See* Code Civ. Proc., § 430.10, subd. (e).)

Respondent separately and specifically demurs to each cause of action alleged in the Petition for Writ of Mandate on the following grounds:

Demurrer to the First Cause of Action

1. Respondent demurs to the First Cause of Action for "Writ of Mandate (Code Civ. Proc. § 1085) Failure to Perform Mandatory Duty Under Penal Code Section 679.10(b)" on the ground the cause of action does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

Demurrer to the Second Cause of Action

2. Respondent demurs to the Second Cause of Action for "Writ of Mandate (Code Civ. Proc. § 1085) Failure to Perform Ministerial Duty Under Penal Code Section 679.10(g) (Reason-Giving Requirement)" on the ground the cause of action does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

Demurrer to the Third Cause of Action

3. Respondent demurs to the Third Cause of Action for "Writ of Mandate (Code Civ. Proc. § 1085) Failure to Apply the Rebuttable Presumption of Helpfulness Under Penal Code Section 679.10(h)" on the ground the cause of action does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

Demurrer to the Fourth Cause of Action

2. Respondent demurs to the Fourth Cause of Action for "Declaratory Relief (Code Civ. Proc. § 1060) Facial Deficiency of the April 20, 2026 Denial and Construction of Penal Code Section 679.10" on the ground the cause of action does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).)

WHEREFORE, Respondent Eric Dutra respectfully requests:

1. That the Court sustain this demurrer and the demurrers stated herein.

2. Such other and further relief as the Court deems just and proper.

Dated: July 30, 2026

Respectfully submitted,

ROB BONTA
Attorney General of California
MARK R. BECKINGTON
Supervising Deputy Attorney General

/s/ *Vanessa Ing*
VANESSA ING
Deputy Attorney General
Attorneys for Respondent
Eric Dutra

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45157477

DECLARATION OF SERVICE BY E-MAIL and U.S. MAIL

Case Name: ***Newanforbi, Brendan Ngehsi v. California Highway Patrol, et al.***
Case No.: **26CV191136**

I declare:

I am employed in the Office of the Attorney General, which is the office of a member of the California State Bar, at which member's direction this service is made. I am 18 years of age or older and not a party to this matter. My business address is: 455 Golden Gate Avenue, Suite 11000, San Francisco, CA 94102-7004. My electronic service address is Melissa.Mendiola@doj.ca.gov. I am familiar with the business practice at the Office of the Attorney General for collection and processing of correspondence for mailing with the United States Postal Service. In accordance with that practice, correspondence placed in the internal mail collection system at the Office of the Attorney General is deposited with the United States Postal Service with postage thereon fully prepaid that same day in the ordinary course of business.

On July 30, 2026, I served the attached:

1. **RESPONDENT ERIC DUTRA'S NOTICE OF JOINDER; NOTICE OF DEMURRER AND DEMURRER TO PETITION FOR WRIT OF MANDATE; NOTICE OF HEARING**

2. **MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF RESPONDENT ERIC DUTRA'S JOINDER AND DEMURRER**

by transmitting a true copy via electronic mail. In addition, I placed a true copy thereof enclosed in a sealed envelope, in the internal mail system of the Office of the Attorney General, addressed as follows:

Brendan Ngehsi Newanforbi
1455 Cat Tail Drive
Stockton, CA 95204
E-Mail: bnn.cdl@gmail.com

Petitioner, In Pro Per

I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on July 30, 2026, at San Francisco, California.

M. Mendiola
Declarant

M. Mendiola
Signature

SA2026303341